



HINDUSTAN COPPER LIMITED

(A Govt. of India Enterprise)

Malanjkhanda Copper Project

P.O.Malanjkhand, Dist.Balaghat (M.P) PIN-481 116

HCL/MCP/CS/PACK-UNPACK-LOAD-UNLOAD/WEB: 01/17-18

12.06.2017

Dear Sirs,

Sub: Enquiry No: HCL/MCP/CS/PACK-UNPACKING-LOAD & UNLOADING/WEB: 01/17-18 date 12.06.2017 for Packing-Unpacking & Loading-Unloading and allied Jobs in Central Stores.

Last date & time for submission of offer 04.07.2017 at 3.00 PM

Opening date of techno-commercial bid 04.07.2017 at 3.30 PM

Sealed tenders are invited from interested contractors in TWO BID SYSTEM for the following jobs at Central Stores for a period of one year on the following terms and condition.

PRE-QUALIFICATION CRITERIA

1. Contractors who are engaged in similar type of contract in MCP, and other Government/Reputed organisation are eligible to submit their offer. New contractors quoting for the first time against this tender should submit documentary evidence of order/contract copy for the executed jobs. For contractors already dealing with HCL/MCP for job contracts, documentary evidence is exempted, however they have to mention their work order numbers/ job contracts numbers in the offer/ techno commercial bid.

2. Tenderers should have Service Tax Registration and PAN No. documentary evidence to be submitted.

3. Party should confirm their acceptance in techno commercial bid against job at Sr. No: 13 ie. Lifting, loading, transportation and unloading of Grinding Media Balls from Central Stores to Concentrator Plant shall be carried out by their own arrangement by truck/tractor trolley as HCL/MCP shall not provide any vehicle for this job.

4. EMD a sum of Rs 18,370.00/- (Rupees Eighteen Thousand Three Hundred Seventy Only) as Earnest Money shall be deposited by the tenderer's along with the offer/quotation, in the form of a demand draft/pay order/deposited at call/Banker's cheque in favour of Hindustan Copper Limited payable at State Bank of India, Malanjkhanda or Indian Overseas Bank, Chartola. Deposit of Earnest Money shall bear no interest and shall be refunded to the unsuccessful tenderers after the finalization of contract. Earnest Money of the successful tenderers shall be returned after awarding the rate contract.

The EMD should be submitted along with Techno-Commercial Bid. Parties should indicate the details of EMD on top of Techno Commercial sealed envelope.

DETAIL OF JOBS TO BE CARRIED OUT AT MCP CENTRAL STORE

1. SCOPE OF WORK RELATED TO PACKING AND UNPACKING

SL	Description of the job to be carried out	Unit Rate
1.	Unpacking of incoming consignments of Boxes size up to 3' x 2' x 2' and subsequent clearing of all unwanted debris from ramps/area Code No: 906230028	Rs. per box
2.	Unpacking of incoming consignments Boxes Size above 3' x 2' x 2' and subsequent clearing of all unwanted debris from ramps/area. Code No: 906230029	Rs. per box
3.	Packing of outgoing consignments in Boxes size up to 3' x 2' x 2' and subsequent clearing of all unwanted debris from ramps/area. Code No: 906230017	Rs. per box
4.	Packing of outgoing consignments in Boxes size above 3' x 2' x 2' and subsequent clearing of all unwanted debris from ramps/area Code No: 906230018	Rs. per box
5.	Maintenance and up keeping of all the out ward four sides (approx.15 mtrs) of the main Central stores building within the compound including the two ramps/cycle stand / car shed, the area where rubber items are stocked. This will also include the area around Petrol Pump. The work is to be done on daily basis. The job involves removal of all unwanted debris viz. scrap wood, used cotton waste, paper, unwanted plants, shrubs, leaves etc., including brooming the surrounding area of main Stores building. Code No: 906230019	Rs. per job
6.	Maintenance and upkeeping of Central Stores main yard starting from drain behind the cycle shed. This include the entire space coveing gas go down and up to cotton waste go down, Peeple tree area, with in the compound the four sides beyond 15 mtrs of main stores but within the boundary wall. The job is to be carried maximum twenty four (24) times in a year as and when required The job involves removal of all unwanted debris viz. scrap wood used cotton waste, paper, unwanted plants, shrubs etc., including brooming the surrounding area of main stores building Code No: 906230020	Rs. Per job
7	Housekeeping of Central Stores Warehouse /go down building. This includes complete brooming inside the building and 60/80 Ton Weigh Bridge Platform and room daily and washing the common area as and when required. Code No: 906230021	Rs. per day
8	Upkeep and maintenance of Weigh Bridge pit including removal of mud/water and unwanted materials from the pit once in a month except rainy season. In rainy, season, pit cleaning is to be done once in a week/as and when required. Code No: 906230022	Rs. per job
9	Shifting and stacking of materials from one bay to another bay. Materials weighing up to 50 kgs. Code No: 906230023	Rs. per job (for up to 50 KG)
10	Shifting and stacking of materials from one bay to another bay.	Rs. per job

	Materials weighing above 50 kgs Code No: 906230024	(for above 50 KG)
11	Lettering/markings of oil drums, cable drums, boxes and all items/consignments. This includes writing with paint- party's name, DRR No, RV No. Code No. Part No. etc. Code No: 906230025	Rs. per item
12	Filling of diesel in Mining Equipments/ light vehicles/heavy vehicles at our diesel pumps. Rate to be quoted per filling basis Code No: 906230026	Rs. per filling
13	Lifting, loading ,transportation and unloading of Grinding Media Balls from Central Stores Stock Yard to Concentrator Plant The contractor should arrange the vehicle truck/tractor Trolley for carrying out the job. HCL/MCP shall not provide any Vehicle for this job. Code No:09623007	Rs. per MT
14	Carrying out miscellaneous office jobs in Central Stores. Code No: 906230059	Rs. daily

2. SCOPE OF WORK RELATED TO LOADING AND UNLOADING AT MCP CENTRAL STORE

(A)	Unloading, shifting and stacking of incoming consignments like Grinding Media Balls, Xanthate, Pine Oil, Lubricants, Coal, Cement, Lime, General spares, Small packages, etc at Central Stores			
SL	CODE NO	DESCRIPTION OF JOB	UNIT	Rate
01	906230030	For Truck load consignments weighing from 8 MT to 10 MT. For quantity more than 10 MT, payment shall be made on pro rata basis.	No	
02	906230032	For Mini truck load consignments weighing from 2 MT to 8 MT.	No	
03	906230033	For Jeep load consignments weighing from 100 Kgs to 200 kg.	No	
04	906230034	Small packages weighing less than 100 Kgs trolley load. The material/ Packages are to be brought from different points within the Co's premises.	No	
(B)	Unloading of structural steels, heavy steel pipes etc. from trucks and trailers, shifting and properly stacking the same in Store Yard as per the requirement and advise of the concerned Store Keeper / Officer			
SL	CODE NO	DESCRIPTION OF JOB	UNIT	Rate
05	906230039	For Trailer load consignments up to 35 MT.	No	
06	906230040	For Truck load consignments up to 20 MT	No	
07	906230041	For Mini truck load consignments up to 8 MT.	No	
(C)	Loading of empty gas cylinders on the truck and unloading, shifting and stacking of filled gas Cylinders from the truck at Store Go down.			
SL	CODE NO	DESCRIPTION OF JOB	UNIT	Rate
08	906230048	For Truck load consignments up to 20 MT.	No	
09	906230049	For Mini truck load consignments up to 8 MT	No	

(D)	Collections of consignments from transporter's go down within the vicinity of 6 Kms. The job involves loading unloading, shifting and stacking of materials as required as per the advice of the concerned Storekeeper / officer. For collection Company shall provide the vehicle.			
SL	CODE NO	DESCRIPTION OF JOB	UNIT	Rate
10	906230050	For Truck load consignments 8MT to 20MT	No	
11	906230051	For Mini truck load consignments 2MT to 8MT	No	
12	906230052	For Jeep load consignments from 100 Kgs to 1000 Kgs.	No	
13	906230053	For small packages total weight less than 100 kgs.	No	

OTHER TERMS AND CONDITIONS

1. SUBMISSION OF OFFER

The tenderer should submit their offer in two bid system consisting of:

- (a) Techno-commercial bid.
- (b) Price bid.

The techno commercial bid should contain EMD, along with acceptance of all terms and condition of enquiry.

The price should contain only the rate part.

Each bid should be sealed in two separate envelopes and shall be identified clearly by super scribing on the top of the respective envelope as Techno-commercial bid with EMD and Price bid. These two envelopes shall be placed in another envelope super scribing enquiry no. and due date of opening containing techno commercial bid and price bid. The offer should reach us on or before due date.

ENVELOPE WITHOUT SUPERSCRIBING OUR ENQUIRY NO.DATE AND DUE DATE ARE LIABLE TO BE REJECTED.

Seal tender including technical Bid and Price bid as per enclosed prescribed proforma should reach on the following address by 3:00 PM on 04.07.2017 address to:

The quotations should be addressed to
AGM (M&C)
Central receipt and dispatch section
Administrative building
PO Malanjkhanda-488116
Dist Balaghat (M.P)

Quotation submitted in person should be dropped in the tender box kept in Receipt & Dispatch Section of Administrative Building on or before the last date 04.07.2017 (Tuesday) up to 3:00 PM.

The techno-commercial bid shall be opened on 04.07.2017 (Tuesday) at 3:30 PM in the presence of tenderers who wish to be present. The price bid shall be opened after evaluation of the commercial bid of only those bidders who have qualified in the Techno-commercial bid.

2) VALIDITY OF OFFER

The offer should be valid for a minimum period of 90 days from the date of opening of offer. Late or delayed offer will not be entertained.

3) RATE

The quoted rates should be firm & fixed during the currency of the contract. The rates should be exclusive of service taxes.

4) PERIOD OF CONTRACT

The contract shall be valid for one year. However, the contract can be extended for a further period of six months on same rate, terms and conditions as per mutual consent between the party and HCL/MCP.

HCL, MCP however reserves the right to terminate the contract at any time by giving 30 days notice in writing without assigning any reasons thereof.

5) QUANTUM OF WORK

There is no guarantee for minimum value of work. However, this will depend upon the quantum of work required to be done by HCL, MCP from time to time. The work assigned against the contract will be entirely at HCL, MCP's discretion.

6. VALUE VARIATION

The overall value of the contract may vary depending upon the requirement of the work to be carried out on the basis of release of PO. Hence there is a provision for +/- 10 % of total sensation value of the contract if required.

7). TERMS OF PAYMENT

The contractor should submit their bills in duplicate on monthly basis to Central Stores and the same will be forwarded to Finance after scrutiny by the concerned Storekeeper/Officer for making payment. Payment will be released after 30 days from the date of receipt of bills in Finance.

In this connection, the contractor will maintain job wise daily records of jobs undertaken and it should have the signature of the concerned Store Keeper/Officer/authorized representative of the Central Stores and this record keeping is a must to avoid any dispute for billing and checking the same at the time of submitting the bill.

8. INCOME TAX

Income tax at prevailing rate as applicable from time to time on the gross amount of bills shall be deducted at source as per section 194(c) of the Income Tax Act if applicable

9. EARNEST MONEY

A sum of **Rs. 18,370.00/- (Rupees Eighteen Thousand Three hundred Seventy Only)** as earnest money shall be deposited by the tenderer along with the offer / quotation in the form of a Demand Draft / Pay Order / Deposited at call / Bankers cheque in favour of Hindustan Copper Limited payable at State Bank of India, Malanjkhanda or Indian Overseas Bank, Chartola. Deposit of Earnest Money shall bear no interest and shall be refunded after finalization of contract & after receipt of security deposit. EMD is to be placed in the envelope of Techno-Commercial bid.

10) SECURITY DEPOSIT

The contract shall be awarded subject to the condition that the successful tenderer shall deposit a sum equivalent to 10% of contract value by way of Demand draft drawn in favour of Hindustan Copper Limited payable at State Bank of India, Malanjkhand Branch or Indian Overseas Bank Chartola Branch.

The Contractor has to deposit the full amount of 10% value of contract either in the form of DD within 15 days of issue of letter of Intent / Contract whichever is earlier.

OR

The Contractor can also furnish the total security deposit amount through Bank Guarantee from any nationalized scheduled bank in the prescribed format as indicated in the tender documents in favour of Hindustan Copper Limited, Malanjkhand Copper Project within 15 days of letter of Intent / contract whichever is earlier. This Bank Guarantee shall be valid for a period of 15 (Fifteen) months. Earnest Money, deposited along with the tender shall be returned after deposit of full amount of security deposit. The SD amount will not accrue any interest and shall be refundable only after successful completion of contract. In case party fails to perform the contract successfully the Security Deposit shall be forfeited.

11. RISK AND COST

In case the contractor fails to execute the awarded work or part thereof as per agreed terms and conditions, HCL / MCP reserve the right to arrange the execution of the awarded work through alternative sources or departmentally at your risk and cost and the difference in cost if any shall be recovered from your bills / Security Deposit. Besides Security Deposit will be forfeited. In addition to this, full penalty and liquidated damages will also be recovered.

12. PENALTY

If minimum demand of required job is not fulfilled daily, the contract is liable to pay the HCL, MCP reserves the right to impose penalty @ 1% value of the particular job per day of delay subject to a maximum of 10% shall be levied on you. In case the entire jobs are not carried out/delayed than the full value of all the jobs per day shall be taken for imposing penalty as above.

13. COMPLY WITH STATUTORY RULE & REGULATIONS

The contractor should possess a valid licence if required and other Govt. clearances from Asst. Labour Commissioner (Central), Chhindwara for engaging labourers. He will engage the workers throughout the year of the contract and also maintain necessary records as prescribed by Administration Department of HCL, MCP. The contractor should also comply with various provisions of E.P.F. and misc. provisions act 1952, Contract Labour's (Regulation & Abolition) Act, Mines Act, Factories Act, Industrial Disputes Act and rules and other rules and regulations as applicable framed there under from time to time. He should contact the Administration Dept. before starting the job for fulfilling / completing all necessary formalities in respect of deployment of number of persons/workers. No women worker is to be employed for the work. No child or the young person below the age of 18 years shall be employed by the contractor for the work.

The contractor has to fulfil the statutory mines regulations and labour laws. The persons to be engaged must undergo Vocational Training as applicable. All the operations covered under this enquiry are to be carried out under the personal supervision of the contractor or his authorized supervisor.

14. DISBURSEMENT OF WAGES

The contractor shall pay minimum wages as per minimum wages act 1948 and amendments from time to time to the labourers engaged by him as per the rules.

15. CONDITON RELATING TO WORK AND COMPENSATION

All safety precautions are to be taken as well as safety appliances are to be provided by the contractor to his workmen during the working at his own cost. The contractor will be fully responsible for any injury / accident to any worker engaged by him during the course of the execution of this contract. HCL, MCP shall not be liable for or in respect of damages or compensation payable under Central/State acts or in consequences of any accident or injury to any workmen or other persons in employment under the contractor during the execution of work.

No part of the contract nor any share or interest therein shall in any manner or degree be transferred, assigned or sublet by the contractor directly or indirectly to any person firm or corporation whosoever without the consent in writing of the owner. In addition to the other laws as applicable and enforce in this project, the implementation of EPF Act (Employees Provident Fund) in respect of labourers engaged by you for executing this job shall be your responsibility.

The contractor has to fulfill the statutory mines regulations and labour laws. All the operations covered under this enquiry are to be carried out under the personal supervision of the contractor or his authorized supervisor.

16. GATE PASS

The persons to be engaged by the Contractor should be provided valid gate pass issued by Security Department, and in this connection, the contractor should contact Administrative Dept. for completing the formalities as required.

17. SUB LET

No part of the contract or any share or interest therein shall in any manner or degree to be transferred or assigned or sublet by the Contractor directly or indirectly to any person, agency, firm company or corporation whatsoever without the consent in writing from the owner.

18. TERMINATION

HCL/MCP reserves its absolute right to terminate the contract or part thereof without assigning reason thereof and the party will have no claim whatsoever.

19. LIEU

HCL / MCP have the right to adjust / recover from such account that becomes recoverable from contractor under the contract including claims of HCL / MCP on account of damage/penalty for breach of contract by the party with prejudice to other rights and remedies available to HCL/MCP.

20. NECESSARY MATERIAL FOR PACKING/HOUSEKEEPING/PAINTING WORKS

- i) Necessary materials for packing will be provided by Central Stores for outgoing materials. However, Tools and tackles for packing, unpacking and cleaning jobs has to be arranged by the contractor.
- ii) For housekeeping, necessary sanitary items will be provided by Central Stores.
- iii) For painting work, paint and brushes will be provided by Central Stores.

21) ARBITRATION

All questions, disputes or differences of any kind whatsoever arising out of or relating to the contract shall be referred by the parties to this contract for decision to a Sole Arbitrator who shall be the Chairman-cum-Managing Director of HCL or any officer of HCL nominated by the said Chairman-cum-Managing Director in that behalf.

In the event of such an Arbitrator to whom the matter is originally referred is transferred or vacates his office by resignation or otherwise or refuses to act or is incapable of acting for any reasons whatsoever, the Chairman-cum-Managing Director shall appoint another person to act as Arbitrator in his place in accordance with the terms of this contract. Such persons shall be entitled to proceed from that stage at which it was left by his predecessor.

There shall be no objection to any such appointment that the Arbitrator appointed is an officer of the Company or that he had any occasion to deal with the matter to which this contract relates or that in the course of his duty as such officer has expressed views on all or any of the matters in dispute or difference. No person other than the Chair-man-cum-Managing Director or his nominee can act as Arbitrator.

The venue of arbitration shall be at Malanjkhand Copper Project.

The award of the Arbitrator shall be final and binding on the parties of this Agreement.

Subject to the above, the provision of Arbitration and Conciliating Act 1996 and of all the rules made there-under and all statutory modification thereof shall govern such Arbitration proceedings and shall be deemed to apply to and be incorporated in this contract.

22. JURISDICTION

The jurisdiction will be the court situated in the district of Balaghat (M.P.) only.

23. OTHER CONDITION

- a) HCL, MCP reserves the right to reject in part full any or all the tenders without assigning any reasons whatsoever.
- b) HCL, MCP also reserve the right to split the contract amongst more than one party or place on one party on overall L-1 basis with applicable conditions.

Thanking You

Your's faithfully

Sameer Nandagawali
Assistant Manager (Materials & Contracts)
Hindustan Copper Limited
Malanjkhand Copper Project
Cell No: +917089060522